

****25.10.2024****

****Sanction for Violation of GDPR****

The National Supervisory Authority for Personal Data Processing completed an investigation in September 2024 regarding the operator IA BILET SRL and found violations of the provisions of Article 5 paragraph (1) letter a) and paragraph (2), in conjunction with Article 6 paragraph (1), Article 12 paragraph (1) first thesis, related to Article 21 paragraphs (2) and (3), and Article 6 paragraph (1) letter a) and Article 7 paragraph (1) of Regulation (EU) 2016/679. As such, the operator was sanctioned with two fines totaling 9,951.4 (equivalent to the amount of 2,000 EURO) and a warning, as follows:

1. a fine of 4,975.7 lei (equivalent to the amount of 1,000 EURO), for violating the provisions of Article 5 paragraph (1) letter a) and paragraph (2), in conjunction with Article 6 paragraph (1) of Regulation (EU) 2016/679;
2. a fine of 4,975.7 lei (equivalent to the amount of 1,000 EURO), for violating the provisions of Article 12 paragraph (1) first thesis, related to Article 21 paragraphs (2) and (3) of Regulation (EU) 2016/679;
3. a warning for violating the provisions of Article 6 paragraph (1) letter a) and Article 7 paragraph (1) of Regulation (EU) 2016/679.

The investigation was initiated following a complaint submitted by an individual alleging a possible violation of the provisions of Regulation (EU) No. 2016/679. In this regard, a client of the operator complained that the operator unjustifiably deleted the account created on the platform iabilet.ro and refused to reactivate their account after exercising their right to deletion, due to the fact that they received unsolicited commercial messages for marketing purposes on their phone number. Additionally, during the investigation, it was found that following the exercise of the right to object regarding the unsubscription from the newsletter of the phone number of the data subject, the operator anonymized (pseudonymized) all personal data from the client's account (name, surname, email address, including the phone number), so that they could no longer use their own account.

As such, during the investigation, the operator did not present evidence regarding compliance with the principles and conditions of legality of such processing of these data, violating the provisions of Article 5 paragraph (1) letter a) and paragraph (2), in conjunction with Article 6 paragraph (1) of Regulation (EU) No. 2016/679. For this violation, the operator was fined 4,975.7 lei (equivalent to the amount of 1,000 EURO).

Furthermore, during the investigation, it emerged that the operator IA Bilet SRL, although it informed the client that it had made changes regarding the email address to enable the account to be used, the account remained inactive. As such, a violation of the provisions of Article 12 paragraph (1) first thesis, related to Article 21 paragraphs (2) and (3) of Regulation (EU) No. 2016/679 was established. For this violation, the operator was fined 4,975.7 lei (equivalent to the amount of 1,000 EURO).

In the course of the investigation, the National Supervisory Authority found that, regarding the transmission of promotional messages via SMS, the operator did not prove that the data subject had previously expressed their explicit consent for the processing of their phone number to receive commercial communications, thus violating the provisions of Article 6 paragraph (1) letter a) and Article 7 paragraph (1) of Regulation (EU) No. 2016/679. As such, the operator was sanctioned with a warning.

Additionally, the following corrective measures were imposed on the operator:

- to ensure compliance with Regulation (EU) No. 2016/679 regarding the operations of personal data processing, including pseudonymization and deletion of such data, in relation to the principles and conditions of legality provided by Articles 5 and 6 of the regulation, including the development of written procedures in accordance with Articles 24 and 32 of the same regulation and the proper and regular training of the persons who will apply them;
- to communicate to the data subject an appropriate response regarding the processing of their personal data following the exercise of their right to object;
- to ensure compliance with Regulation (EU) No. 2016/679 regarding subsequent operations of personal data processing, by providing transparent, correct, and complete information to all data

subjects whose personal data are processed by the operator, regarding the manner of exercising their rights, in accordance with the provisions of Articles 12-23 of the regulation, as well as the proper and regular training of the persons managing the requests of data subjects;

- to ensure compliance with Regulation (EU) No. 2016/679 regarding the collection and subsequent processing of personal data, by correctly and demonstrably implementing the procedure for obtaining the explicit consent of the data subjects for sending them commercial communications by electronic means (including by phone and email) and ceasing the transmission of such communications in the case of individuals for whom compliance with the aforementioned legality conditions cannot be proven.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****